

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01810
CASE NAME: AIM BUSINESS CAPITAL, LLC VS. MARK WOOLDRIDGE
***HEARING ON MOTION IN RE: DETERMINE GOOD FAITH OF SETTLEMENT**
FILED BY: CREATIVE FINE FOODS, LLC
TENTATIVE RULING:

The hearing on this Motion is **vacated**. The Court entered an Order Determining Good Faith Settlement on November 14, 2025. No appearance is required at this hearing.

3. 9:00 AM CASE NUMBER: C23-00279
CASE NAME: ATCHISON VILLAGE VS. MANDEL
***HEARING ON MOTION IN RE: ATTORNEYS' FEES**
FILED BY: MANDEL, PHYLLIS
TENTATIVE RULING:

Summary

The Court **grants** Defendant's Motion for Attorney's Fees and Costs, as set forth herein.

Background

On February 7, 2023, Atchison Village ("Plaintiff") filed this case against Phyllis Mandel ("Defendant"), alleging that she caused leak by allowing her bathtub to overflow, damaging certain common property of the Plaintiff, in or around January 2020. Plaintiff claims that Defendant allowed the water to build up in the bathtub and accumulate across the bathroom floor causing a causing [sic] water damage." (Complaint, ¶ 13.) Defendants claim that Plaintiff fabricated these claims, with the knowledge that the video evidence of the alleged bathtub overflow in its possession was from an unrelated event that occurred in 2019.

Plaintiff alleged that Defendant's failure pay for the repairs "demonstrates her bad faith intent to uphold the commitment she has with Plaintiff and members of the community." Defendant also claims that Plaintiff attempted to intimidate her by threatening to terminate her membership in Atchison Village, which would be the equivalent of foreclosing/evicting her—an elderly woman—from her home that she has resided in for more than twenty years. (Complaint, ¶ 23.) (Etemadi Decl., ¶¶ 8-8; Mandel Decl., ¶ 9.).

After this Court granted Defendant's discovery motions on May 21, 2025, Plaintiff dismissed its case on June 6, 2025. The Request for Dismissal was entered on the same day, June 6, 2025.

On August 6, 2025, Defendant Phyllis Mandel (Defendant), by and through her counsel, MBK Chapman PC, filed a Motion for Attorney's Fees seeking \$94,218.32, supported by a Memorandum of Points and Authorities, Declarations of Jason K. Boss, Jessica Grazul, Sara Etemadi, Karla Garcia and Phyllis Mandel ("Motion"). The Motion was also accompanied by a Notice and Amended Notice, filed on August 13, 2025. Defendant claims that she was improperly sued in this case as a Defendant, and is now the prevailing party in this action within the meaning of Code of Civil Procedure sections 1032(a)(4) and 1033.5(a)(10(A), as well as under the express terms of Section 15 of the Mutual Ownership Contract between Atchison Village and Ms. Mandel, (below) which provides for an award